

made to one person, a trust cannot be proved by *parol* in favour of another, for this would contradict the nature of the instrument which purports to be an act of bounty to *the grantee (*a*). However, if the grant be to A. [*22] and his *heirs* with the limitation of a beneficial interest to A. for life only, a trust of the remainder will not pass to the grantee, but will result to the Crown, for the presumption of bounty as to the whole is rebutted by the declared intention as to the part (*b*).

Prizes. — All prizes taken in war vest in the sovereign, and are commonly by the royal warrant granted to trustees upon trust to distribute in a prescribed mode amongst the captors; but an instrument of this kind is held not to vest an interest in the *cestuis que trust* which they can enforce in equity, but it may at any time be revoked or varied at the pleasure of the sovereign before the general distribution (*c*). [The effect of such an instrument is merely to appoint the persons named to be the agents of the sovereign to effect the distribution (*d*).]

Will of the sovereign. — The Crown may also by *will* bequeath its private personal property to one person in trust for another, but the will must be in writing and under the sign manual (*e*), though the Probate Court has no jurisdiction to admit it to probate (*f*).

3. Corporations. — As to the power of *Corporate Bodies*¹ to create a trust, it was competent to municipal corporations, before the Municipal Corporations Act (*g*), to alienate their

(*a*) *Fordyce v. Willis*, 3 B. C. C. 577.

(*b*) *Bac. on Uses*, 66.

(*c*) *Alexander v. Duke of Wellington*, 2 R. & M. 35. As to the execution of the trust by the agency of persons deputed by the principals, see *Tarragona*, 2 Dods. Adm. Rep. 487.

[(*d*) *Kinlock v. Secretary of State for India in Council*, 15 Ch. D. 1; 7 App. Cas. 619.]

(*e*) 39 & 40 G. 3. c. 88, s. 10.

(*f*) *Williams on Executors*, 14, 8th ed. In the goods of his late Majesty Geo. 3. 3 Sw. & Tr. 199.

(*g*) 5 & 6 W. 4. c. 76.

¹ May, subject to their charters, and the laws under which they are organized, alienate their property: *Angell on Corp.* § 191; *Barings v. Dabney*, 19 Wall. 1; *Dana v. Bank*, 5 Watts & S. 224; *Catlin v. Eagle Bank*, 6 Conn. 233; *Hopkins v. Turnpike Co.* 4 Humph. 403; *Maryland v. Bank*, 6 Gill & J. 205; *Barry v. Merchant's Co.* 1 Sandf. Ch. 280.